

[Session Name]

Day-14RTL

[Case Name]

Copyright Claim

Exported By Anikit Sharma

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Page	Source Text	Note	Issues
1	PROCEEDINGS		
1	(11.00 am)		
1	two points.		
1	First, to remind the parties that I would like		

01	11:00:04	{G2-4} {G2} {H2} P R O C E E D I N G S
02	11:00:05	(11.00 am)
03	11:00:08	HIS HONOUR: Thank you. Before we begin, can I just mention
04	11:00:10	two points.
05	11:00:14	First, to remind the parties that I would like
06	11:00:17	a copy of the chronology cross-referenced to the
07	11:00:18	bundles.
08	11:00:19	Also, I would like just a little help as to how the
09	11:00:24	bundles have been put together. They are certainly not
10	11:00:26	in chronological order; what order are they in?
11	11:00:27	MR JONES: It's a very good question, the sort of question
12	11:00:30	that I --
13	11:00:35	HIS HONOUR: The rules require a chronological bundle, and
14	11:00:40	it is quite difficult thinking -- well, I would like to
15	11:00:45	see the {A2-3} and {A3-4} to which that document is an
16	11:00:48	answer, and then you have to, by pure chance, go about
17	11:00:52	four bundles further on, which slightly ... (Pause)
18	11:00:53	But they have just been divided up with tabs.
19	11:00:58	MR JONES: I mean, one option is the parties assist you by
20	11:01:00	producing an agreed bundle -- hopefully when we have
21	11:01:05	done our written closings with reference in {A1-10} and
22	11:01:10	{A1-11}.
23	11:01:15	HIS HONOUR: I would be grateful. There was always a risk
24	11:01:17	anyway of seeing the document in two different places.
25	11:01:18	MR JONES: We'll secure that for you.

26 11:01:21 Could I ask your Honour, please, to take up the list
27 11:01:22 of issues. It can be found in {E2-34}.
28 11:01:25 In {B3-2}, there are two sets of lists of issues.
29 11:01:27 There's a case memorandum list of issues from the --
30 11:01:30 HIS HONOUR: The parties weren't able to agree on the list
31 11:01:35 of issues?
32 11:01:37 MR JONES: That's right, yes. Slightly --
33 11:01:42 HIS HONOUR: It's not unknown, Mr Jones.
34 11:01:43 MR JONES: The bank and the first defendant were able to
35 11:01:45 agree on what they thought were the list of issues.
36 11:01:47 HIS HONOUR: Of course. That goes without saying.
37 11:01:52 MR JONES: My learned friend took you to these yesterday in
38 11:01:53 relation to his submissions about the issue estoppel,
39 11:01:58 and made the point that the July 2003 dishonest
40 11:02:03 statement was not an issue.
41 11:02:05 I mean, that's absolutely right, because I'll
42 11:02:08 develop -- that's actually a point in our favour, but
43 11:02:11 perhaps, first of all, we could turn to {D2-12}.
44 11:02:12 HIS HONOUR: Yes.
45 11:02:13 MR JONES: This is within the claimant's list of issues,
46 11:02:16 just to see how narrowly focused the misrepresentation
47 11:02:18 issue in the 2001 trial was.
48 11:02:22 One can see that summarised at {A1-5}, and then in
49 11:02:25 the subparagraphs which go over the page.
50 11:02:29 It's very clear, just looking at what those issues

51 11:02:34 are, in terms of the representations made.

52 11:02:38 Starting at bundle {D1-9}, subparagraph 16.1.1:

53 11:02:43 "The claimant's capital would be protected and they

54 11:02:44 would not lose money ..."

55 11:02:47 In bundle {F1-5}:

56 11:02:49 "There was only a negligible chance the claimant's

57 11:02:51 capital would fail to appreciate ..."

58 11:02:55 HIS HONOUR: Yes.

59 11:02:58 MR JONES: These are all pre-contractual representations.

60 11:02:59 They are very much focused at the early stage.

61 11:03:03 If one turns to the list of issues by the parties,

62 11:03:04 one can see at {B3-19}, and then forward to page 10, for

63 11:03:09 example, in relation to the misrepresentation claim,

64 11:03:14 they are all focused on, again, pre-contractual

65 11:03:16 representations which have been relied on in the

66 11:03:21 re-amended particulars of claim.

67 11:03:23 I think my learned friend took you to those at

68 11:03:24 {A3-4} and {B2-4}.

69 11:03:28 Unless you would like me to, I don't propose to take

70 11:03:33 you back to the claimant's re-amended particulars of

71 11:03:36 claim.

72 11:03:37 HIS HONOUR: It's the protection point.

73 11:03:40 MR JONES: Protection, exactly. It's all about what was

74 11:03:41 said to induce the claimant to enter into these

75 11:03:44 products.

76 11:03:45 Again, I'll develop this further, but this is the
77 11:03:47 only focus of attention in terms of agency at that
78 11:03:51 point -- again, subject to what happens.
79 11:03:55 If I could open {C1-5}.
80 11:03:56 HIS HONOUR: {C1-5}, yes, I'm up to date with that.
81 11:03:59 MR JONES: Perfect.
82 11:04:00 Bundle {E2} should now be {E1} -- well, it's
83 11:04:02 19 pages on the PDF, but the last page is 25, and that's
84 11:04:04 been updated very recently.
85 11:04:05 I don't know if your Lordship has that last --
86 11:04:10 HIS HONOUR: No. What's come in recently in bundle {E4}?
87 11:04:14 MR JONES: Certainly I received it this morning. There is
88 11:04:15 a clip of about 8 or 12 pages, an email exchange and
89 11:04:17 a letter from the claimant a couple of days ago.
90 11:04:22 It sounds like Mr David is with us.
91 11:04:27 MR DAVID: Hold on one second. I'm on my telephone with the
92 11:04:29 technical support.
93 11:04:31 They say, first of all, I have to get online on my
94 11:04:36 telephone, and then they will do some magic to ensure
95 11:04:39 that I get on on my laptop.
96 11:04:43 So just for the technical support chap, do I now
97 11:04:46 come off the link on my telephone?
98 11:04:48 (Pause).
99 11:04:50 MR JONES: I don't know if it would be convenient to finish
100 11:04:54 off the housekeeping. I don't think Mr David will

101 11:04:58 accuse me of leaving him out.

102 11:05:01 HIS HONOUR: Yes.

103 11:05:04 MR JONES: So the final page of bundle {E5} is numbered 95.